

		The Boeing Company is to file the proposed Cross-Complaint, attached to the Motion, without any changes, modifications, or alterations, within 7 days of the date of the hearing. Moving party is to give notice.
6.	PRIMARY CARE ASSOCIATES OF CALIFORNIA, INC. VS. BZ HEALTH NETWORK OF CALIFORNIA, INC. 2025-01451241	1. MOTION TO COMPEL COMPLIANCE Plaintiff Primary Care Associates of California, Inc.’s Motion to Compel Compliance with this Court’s January 27, 2026 Order is DENIED. Plaintiff seeks an order compelling Defendants to respond to discovery. This Court only ordered Plaintiff “to file a separate statement in compliance with Section 2019.210 and is prohibited from engaging in discovery until it complies.” (ROA 166.) It made no order as to Defendants providing discovery responses upon Plaintiff filing such. Thus, the Motion is denied because there is no basis in the January 27, 2026 to order Defendants to provide discovery responses. 2. MOTION TO ENFORCE PROTECTIVE ORDER Defendants BZ Health Network of California, Inc. and BZ Health of California’s Motion for Protective Order is GRANTED. The Court, after review of the nature of the trade secret claims and the separate statement, in its discretion, finds the separate statement lacks sufficient particularity. Thus, Plaintiff is ordered to amend its separate statement “In any action alleging the misappropriation of a trade secret under the Uniform Trade Secrets Act (Title 5 (commencing with Section 3426) of Part 1 of Division 4 of the Civil Code), before commencing discovery relating to the trade secret, the party alleging the misappropriation shall identify the trade secret with reasonable particularity subject to any orders that may be appropriate under Section 3426.5 of the Civil Code.” (Code Civ. Proc., § 2019.210.) The trade secret designation mandated by section 2019.210 is not itself a pleading but it functions like one in a trade secret case because it limits the scope of discovery in much the same way as the allegations of a complaint limit discovery in other types of civil actions. . . . The rule that a trade secret must be pled with “reasonable particularity” does not mean that the designation must be strictly construed against the pleader. Generally speaking, pleadings are to be liberally construed in favor of the pleader and doubts about the permissible scope of discovery are to be resolved in favor of disclosure. [¶] “Reasonable

particularity” mandated by section 2019.210 does not mean that the party alleging misappropriation has to define every minute detail of its claimed trade secret at the outset of the litigation. Nor does it require a discovery referee or trial court to conduct a miniature trial on the merits of a misappropriation claim before discovery may commence. Rather, it means that the plaintiff must make some showing that is reasonable, i.e., fair, proper, just and rational[,] under all of the circumstances to identify its alleged trade secret in a manner that will allow the trial court to control the scope of subsequent discovery, protect all parties’ proprietary information, and allow them a fair opportunity to prepare and present their best case or defense at a trial on the merits.

(*Advanced Modular Sputtering, Inc. v. Superior Court* (2005) 132 Cal.App.4th 826, 835-836 [internal citations omitted].)

“The trade secret must be described ‘with sufficient particularity to separate it from matters of general knowledge in the trade or of special knowledge of those persons who are skilled in the trade, and to permit the defendant to ascertain at least the boundaries within which the secret lies.’ [Citations.]” (*Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 43-44.)

“[T]he rule requiring a plaintiff to describe its trade secrets before the commencement of discovery serves several purposes: it discourages the filing of meritless claims, prevents plaintiffs from using the discovery process to uncover the defendant’s trade secrets, assists the trial court in framing the scope of discovery, and ‘enables defendants to form complete and well-reasoned defenses, ensuring that they need not wait until the eve of trial to effectively defend against charges.’ ” (*Id.* at 44.) The trial court has discretion in determining the level of detail needed to comply with Section 2019.210. (*Perlan Therapeutics, Inc. v. Superior Court* (2009) 178 Cal.App.4th 1333, 1349.)

In *Brescia v. Angelin* (2009) 172 Cal.App.4th 133, the court found the plaintiff had provided a sufficient trade secret designation. “Brescia filed under seal the trade secret designation that is at issue in this appeal. In it, he identified two alleged trade secrets: his pudding formula and his manufacturing process. He described his pudding formula, as follows: “Attached under seal as exhibit 1 is a single page, containing a list of the 15 specific ingredients that constituted Brescia's pudding formula in the last quarter of 2003. The list identifies each ingredient by its common name and the percentage it constitutes of the total pudding. The second list identifies the same 15 ingredients listed by their supplier and brand name. Brescia alleges that this formula is a trade secret.” As promised, exhibit 1 contained two lists, one of which gave the common name of 15 ingredients and their respective percentages in the final product ranging from 82.6 percent to .03 percent, and the

other of which gave the brand name and supplier. The trade secret designation described Brescia's manufacturing process as follows: "Attached under seal as exhibit 2 is a single page description of the manufacturing process for pudding described above as of the last quarter of 2003. Brescia alleges that this manufacturing process is a trade secret." The attached exhibit listed each step in the mixing, testing, and code marking of the pudding." (*Id.* at 140-141.)

"We conclude that whether a trade secret designation adequately distinguishes the allegedly protected information from the general knowledge of skilled persons in the field is a function of the particularity of the designation—that is, a function of whether the stated details themselves are sufficient, given the nature of the alleged secret and the technology in which it arises, to permit the defendant to ascertain whether and in what way the information is distinguished from matters already known, and to permit the court to fashion appropriate discovery." (*Id.* at 144.)

The description of the trade secrets in Plaintiff's separate statement is too general and are within general knowledge. Unlike in *Brescia*, all the listed items in the trade secrets are generalized and unspecific such that they could be distinguished from other physician group's own contract, rates, formulas, methodologies, or the like.

Accordingly, the Court determines this case requires additional specificity.

3. MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN)

Plaintiff Primary Care Associates of California, Inc.'s Motion to Compel the Deposition of Defendants' Person Most Knowledgeable is DENIED as premature.

This Motion is premature based on this Court's ruling on the insufficient separate statement under Code of Civil Procedure, section 2019.210.

4. MOTION TO DEEM FACTS ADMITTED SET ONE

Plaintiff Primary Care Associates of California, Inc.'s Motion to Deem Matters Admitted is DENIED as premature.

This Motion is premature based on this Court's ruling on the insufficient separate statement under Code of Civil Procedure, section 2019.210.